

2:00 PM

LINE 5

25-CLJ-05691

AMERICAN EXPRESS NATIONAL BANK VS YARON ASHER

AMERICAN EXPRESS NATIONAL BANK
YARON ASHER

AARON N. BALDARO
PRO SE

DEFENDANT'S MOTION FOR SANCTIONS FOR FRAUD ON THE COURT, FALSE PROOF OF SERVICE, MISCONDUCT BY PLAINTIFF'S COUNSEL AND PROCESS SERVER, AND DIRECT LIABILITY OF PLAINTIFF AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Defendant Aaron Yasher's ("Defendant") Motion for Sanction is DENIED.

Procedural background

Plaintiff American Express National Bank ("Plaintiff") filed this breach of contract action against Defendant on July 28, 2025. Thereafter, Defendant filed and served a Motion to Quash Service of Summons, a Motion to Strike the Proof of Service of the Summons and Related Filings, and a Motion to Dismiss the Complaint for Lack of Personal Jurisdiction. On March 3, 2026, the court denied Defendant's Motion to Quash and Motion to Strike, and it denied as moot Defendant's Motion to Dismiss.

On March 25, 2026, Defendant filed and served a Motion for Reconsideration of Order Denying Motion to Quash Service of Summons. Defendant's reconsideration motion argued that the process server, Stacey Soloman ("Soloman"), could not have served Defendant with the summons and complaint as stated in the proof of service. The court denied the reconsideration motion.

Defendant's Motion for Sanctions

Defendant now moves for sanctions pursuant to Code of Civil Procedure sections 128.5, 128.7, 128, subdivision (a)(4), and 177.5. Defendant once again argues that he could not have been served with the summons and complaint as claimed in the proof of service, and therefore he seeks sanctions based on a purported fraud by Soloman, Plaintiff's counsel and Plaintiff for the proof of service and opposition to Defendant's Motion to Quash.

Code of Civil Procedure Sections 128.5 and 128.7

Code of Civil Procedure section 128.5 authorizes the court to "order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Frivolous" is defined as "totally and

completely without merit or for the sole purpose of harassing an opposing party.” (*Id.*, at § 128.5, subd. (b)(2).)

Code of Civil Procedure section 128.7, subdivision (b), also allows the court to impose sanctions. Defendant seeks sanctions under the part of section 128.7 which provides that by presenting to the court a pleading, motion or other similar paper, an attorney is certifying that to the best of the person’s knowledge, information and belief, formed after an inquiry reasonable under the circumstances, “[t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.” (Code Civ. Proc., § 128.7, subd. (b)(3).)

Section 128.5 requires showing a subjective bad faith in taking the frivolous action or tactic, whereas section 128.7 requires a court to find only that a party’s or attorney’s conduct is objectively unreasonable. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 132-134.)

Defendant fails to establish that the filing of the proof of service of the summons and complaint and opposition to the Motion to Quash were objectively unreasonable. Soloman signed a declaration under penalty of perjury claiming personal service on Defendant and also provided a declaration to this effect. As the court found in denying Defendant’s Motion to Quash, a registered process server’s declaration of service establishes a presumption that the facts stated in the declaration are true. (Evid. Code, § 647.) Thus, Plaintiff’s reliance on Soloman’s declaration of service was not objectively unreasonable.

Likewise, Defendant fails to establish that sanctions are warranted under section 128.5 based on bad faith. Defendant has not proffered any evidence to support that these actions were taken by Plaintiff and/or Plaintiff’s counsel with subjective bad faith and were frivolous or solely intended to cause unnecessary delay. Further, *Peake v. Underwood* (2014) 227 Cal.App.4th 428, 448, does not support Defendant’s argument as it involved sanctions under section 128.7, not section 128.5.

Code of Civil Procedure sections 128, subdivision (a)(4), and 177.5

The court has the power to compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein. (Code Civ. Proc., § 128, subd. (a)(4).)

The court also has the power to impose reasonable monetary sanctions, not to exceed \$1,500, for any violation of a lawful court order by a person, done without good cause or substantial justification. (Code Civ. Proc., § 177.5.)

Defendant fails to show that Plaintiff and/or Plaintiff’s counsel violated a judgment, court order or process. As such, the court finds that sanctions are not warranted under these sections.

Conclusion

Defendant fails to establish that sanctions are warranted under any of these authorities. The request for sanctions and the related relief are therefore DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

26-UDL-00037

MICHAEL GEMIGNANI VS. THOMAS LEBEAU, ET AL.

MICHAEL GEMIGNANI
THOMAS LEBEAU

GRANT H. BAKER
PRO SE

MOTION OF PLAINTIFF MICHAEL GEMIGNANI FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Initially, the court notes that Plaintiff has not provided the address for the hearing. Department 4 is located at the Southern Courthouse, Courtroom 4C, 400 County Center, Redwood City, CA 94063. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The unopposed Motion for Leave to File First Amended Complaint (the “Motion”) brought by Plaintiff Michael Gemignani is DENIED without prejudice.

The Motion Is Fatally Defective.

Proofs of service must be filed five court days before the hearing. No proof of service of the moving papers appears in the Court’s records. Therefore, Defendants did not receive proper notice of the hearing date and the Court must deny the Motion for lack of jurisdiction. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-1205 [“the court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (citations omitted)]). Further:

[P]roof of service fulfills the function of establishing that “procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.” Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act.

(*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420 (internal citations omitted).)

The Proposed First Amended Complaint Is Fatally Defective.

Subject to any opposition credited by the court, the Court was prepared to grant the unopposed Motion once proper service on all parties were demonstrated, or Defendants were to indicate their lack of opposition to the Motion. In such case, if Plaintiff has properly served the Motion, Plaintiff would be properly to contest, file, serve, and email Department 4 by 10:00 a.m. on July 7, 2026, the documents showing proper service, or if Defendants were not to oppose the Motion, they would be to email Department 4 by 10:00 a.m. on July 7, 2026, that they do not contest the granting the Motion and waive notice, and Plaintiff would be to appear at the hearing. If one of these conditions were not to occur, then the Court would deny the motion without prejudice.

However since the motion is procedurally defective, the Court points out that there are substantive defects in the proposed First Amended Complaint which might not stop the motion to amend being granted, but would be subject to a demurrer being sustained and thus the Court denies the motion without prejudice. The proposed First Amended Complaint ("FAC") is defective, in that it fails to attach the indicated cause of action for breach of contract as required. (Proposed FAC, box 8, at Baker Decl., p.5, in Exh. A ("The following causes of action are attached and the statements above apply to each *(each complaint must have one or more causes of action attached)*" (emphasis in original)).)

Also, without exhibit markers, the FAC appears to attach not only the lease and its addenda, but also multiple pages regarding an insurance policy, which pages were not attached to the Complaint. (See Baker Decl., pp.17-32, in Proposed FAC, Exh. A.) These pages also appear at the end of Exhibit 1 to Plaintiff's Declaration, which is declared to show the lease. (See Gemignani Decl., ¶ 2, pp.15-30, in Exh. 1.)

For all of these reasons, the Motion is DENIED without prejudice.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.



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